ENTERPRISE MASTER SERVICES AGREEMENT (MSA)

Contract Reference: MSA-2026-CLOUD-9941 | Effective Date: January 15, 2026

1. PARTIES AND SCOPE OF AGREEMENT

This Enterprise Master Services Agreement ('Agreement') is entered into as of January 15, 2026 ('Effective Date'), by and between CloudScale Technologies Inc., a Delaware corporation with its principal place of business at 500 Enterprise Way, Suite 400, San Francisco, CA ('Vendor' or 'Provider'), and OmniGlobal Enterprises LLC, a New York limited liability company with its principal office at 1250 Broadway, New York, NY ('Customer' or 'Client'). Vendor and Customer may collectively be referred to as the 'Parties'.

Vendor provides an enterprise multi-tenant cloud data analytics and automated workflow orchestration platform. This Agreement establishes the general terms under which Customer may procure cloud subscription licenses, professional deployment services, and premium technical support from Vendor.

2. SUBSCRIPTION FEES, INVOICING, AND PAYMENT TERMS

2.1 Annual Subscription Fee: Customer shall pay Vendor an annual recurring subscription fee of $450,000 USD, payable net thirty (30) days from the date of invoice. All payment obligations are non-cancelable and fees paid are non-refundable.

2.2 Overdue Payments: Any undisputed amount not received within thirty (30) days of the due date shall accrue interest at the rate of 1.5% per month or the maximum rate permitted by law, whichever is lower.

2.3 Price Escalation: Upon renewal of the Initial Subscription Term, Vendor reserves the right to increase annual subscription fees by up to five percent (5%) upon providing sixty (60) days advance written notice.

3. DATA SECURITY, COMPLIANCE, AND PRIVACY COVENANTS

3.1 Security Controls: Vendor maintains administrative, technical, and physical safeguards designed to protect Customer Data, including achieving and maintaining SOC 2 Type II certification and ISO 27001 compliance throughout the term.

3.2 Security Breach Notification SLA: In the event of a verified Security Breach affecting Customer Data, Vendor shall notify Customer via email within forty-eight (48) hours of actual verification and take immediate remediation measures at its sole cost.

3.3 Zero Data Retention for AI Features: Where AI automated inference features are activated, Customer Data processed through cloud inference endpoints is processed strictly in-memory without persistent storage, logging, or model retraining.

4. INTELLECTUAL PROPERTY RIGHTS AND RESTRICTIONS

4.1 Customer Data Ownership: Customer retains all right, title, and interest in Customer Data, including all intellectual property rights. Customer grants Vendor a limited, non-exclusive license solely to host, transmit, and display Customer Data as necessary to deliver the Services.

4.2 Vendor Proprietary Platform: Vendor retains all rights in the platform, documentation, underlying models, algorithms, and APIs. Customer shall not reverse engineer, decompile, or create derivative works based on Vendor software.

5. LIMITATION OF LIABILITY (AUDIT WARNING: CAP CLAUSE)

5.1 Exclusion of Consequential Damages: NEITHER PARTY SHALL BE LIABLE UNDER THIS AGREEMENT FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, OR PUNITIVE DAMAGES, INCLUDING LOSS OF PROFITS, REVENUE, OR DATA, REGARDLESS OF THE THEORY OF LIABILITY.

5.2 Aggregate Cap on Liability: EXCEPT FOR GROSS NEGLIGENCE, WILLFUL MISCONDUCT, OR INDEMNIFICATION OBLIGATIONS UNDER SECTION 6, EACH PARTY'S MAXIMUM AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT SHALL BE STRICTLY LIMITED TO THE TOTAL AMOUNT ACTUALLY PAID BY CUSTOMER TO VENDOR IN THE TWELVE (12) MONTHS PRECEDING THE INCIDENT GIVING RISE TO LIABILITY, NOT TO EXCEED $500,000 USD.

6. INDEMNIFICATION OBLIGATIONS

6.1 Vendor IP Indemnity: Vendor shall defend, indemnify, and hold harmless Customer against any third-party claim alleging that Customer's authorized use of the Services infringes or misappropriates any valid United States patent, copyright, or trademark.

6.2 Customer Indemnity: Customer shall defend and indemnify Vendor against any third-party claim arising from Customer Data violating applicable privacy laws or infringing third-party intellectual property rights.

7. TERM, TERMINATION FOR CAUSE, AND TERMINATION FOR CONVENIENCE

7.1 Term: The Initial Term of this Agreement is three (3) years starting January 15, 2026, expiring January 14, 2029.

7.2 Termination for Convenience: Customer may terminate this Agreement without cause at any time by providing at least ninety (90) days advance written notice to Vendor; provided that Customer shall pay an early termination fee equal to 50% of the remaining fees.

7.3 Termination for Cause: Either Party may terminate immediately upon written notice if the other Party materially breaches any term and fails to cure such breach within thirty (30) days of receiving written notice.

7.4 Governing Law: This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to conflict of laws principles. The Parties submit to the exclusive jurisdiction of the state and federal courts in New Castle County, Delaware.